

AND Be it further enacted by thaurtoritie aforeside, that yf anye parson or parsons of what estate degree or condition soever he she or they be, bodie Polytique or Corporate, that now have or hereafter shall have in his her or their custodye anye the Book^e or writing^e of the sort^e aforesaid, or anye Images of Stone Tymbre Alieblaster or Earthe graven carved or paynted, whiche heretofore have bene taken out of anye Church or Chappell, or yett stande in anye Church or Chappell, and doe not before the laste daye of June next ensuyng deface and destroye or cause to be defaced and destroyed the same Imag^e and everie of them, and delyver or cause to be delivered all and everie the same Bookes to the Mayor Baylyf Constable or Church wardyns of the Towne where suche Book^e then shalbe, to be by them delyvered over openlye within thre monethes next followinge after the saide deliverie to the Archebushopp^e Bushopp^e Chauncellor or Cōmynsarie of the same Dioces, to thintent the saide Archebushopp^e Bushopp^e Chauncellor or Cōmynsarie and everie of them cause them ymediatlye eyther to be openlye brent or otherwayes defaced and destroyed, shall for everie suche Book^e or Book^e willinglye retayned in his her or their hand^e or custodye within this Realme or elsewhere within anye the King^e Dnyons, and not delivered as ys aforeside after the saide laste daye of June, and he thereof laufullye convicte, forfeyte and loose to the Kinge our Sovereigne Lorde for the fyrr Offence twentie shilling^e, and for the seconde Offence shall forfeyte and lose beinge thereof laufullie convicte fower poundes, and for the thirde Offence shall suffre ymprisonment at the King^e will.

AND Be it further enacted by thaurtoritie aforeside, That yf anye Mayors Baylyfes Constables or Church Wardyns doe not, within thre monethes after the receipte of the same book^e, deliver or cause to be delivered suche book^e soe by them receyved to the Archebushopp^e Bushopp^e Chauncellor or Cōmynsarie of their Dioces, and yf the saide Archebushopp^e Bushopp^e Chauncellors or Cōmynsaries do not within fortye dayes after the receipte of suche book^e, burne deface and destroye or cause to be burned defaced or destroyed the same book^e and everie of them, that then they and ev^{ry} of them so offendinge shall lose and forfeyte to our Sovereigne Lords the Kinge, beinge therefore laufullye convicte, fortye poundes; Thone halfe of all suche forfeitures shalbe to anye of the King^e Subject^e that will sue for the same in anye of the King^e Court^e of Records by bill playnte action of debate or informacōn, in whiche accōn no esoyne greecōn wager of lawe or other delaye shalbe allowed.

AND for better execucon of the same Acte, Be it enacted by thaurtoritie aforeside, That newell Justices of Amise in their Circuyte as Justic^e of Peace within the lymyt^e of their Cōmynsion in the geshall Sessions, shall have full power and autoritie to enquire of thoffenc^e aforesaid and to heare and determyne the same, in suche forme as they maye doe in other suche lyke cases.

(¹) PROVIDED always and be it enacted by thaurtoritie aforeside, That anye poon or poons maye use kepe have and retyne anye Prymary in the Englishe or Latyne tongue set forth by the late Kinge of famous memorie Kinge Henrie thight; so that the sentenc^e of Invoacōn or Prayer to Sainct^e, in the same prymary be blotted or clereyde put out of the same; anye thinge in this Acte to the contrarye notwithstandinge.

PROVIDED always, That this Acte or anye thinge therein conteyned shall not extende to anye Image or Picture sett or given upon anye Tombe in anye Church Chappell or Church Yarde, onelye for a Monument of anye Kinge Prince Noblemen or other dead poon, whiche hath not bene comonlye repated and taken for a Saincte; but that suche Pictur^e and Imag^e maye stande and continue in like manner and fourme as yf this Acte had never bene had nor made; anye thinge in this Acte to the contrarye in anye wise notwithstandinge.

CHAPTER XL (¹)

AN ACTS that the King^e Ma^{ty} maye nominat xxxij poons to passe and make Ecclesiastical Lawes.

ALBEIT the King^e most Excellent Majestie, Godho^o and Ruler under God of this Realme, ought most justly to have the govtment of his Subject^e and the definicion of their causes newell Ecclesiastical as Tempall, yett the same, as touching Ecclesiastical causes, haveyng not of long tyme ben put in ure nor enclayved by the reason of the usurped auctorite of the Byshop of Rome, be not pfectly understood nor known of his Subject^e, and therefore of necessarye newell for the abolishing and putting to utter oblyvion the said usurped auctorite, as for the necessarye admystracion of Justice to his lovinge Subject^e, Yt maye please his Highnes that yt maye be enacted by his most gracios assent wth the assent of the Lord^e sp^{ea}ll and tempall and the Cōm^{on}s of this p^{re}s^{ent} p^{ar}liamt assembled and by auctorite of the same, that the King^e Majestie shall from henceforth duringe thre yeres have full power auctorite and libte to nomynt and assigne by the advise of his Highnes Councell, sixtene poons of the Clergy, wherof fower to be Byshop^e, and sixtene poons of the Tempall, wherof fower to be lerned in the common lawes of this Realme, to passe and examyne the Ecclesiastical Lawes of long tyme here used, and to gather order and comylee suche Lawes Ecclesiastical as shalbe thought by his Majesty his said Councell and them or the more part of them convenient to be used practised and set forth wthin this his Realme and other his Downyns, in all sp^{ea}ll or ecclesiastical Court^e and Conventions; And yf after suche allocacōn any of the poons so to be nomynt, happen to dye, that then his Highnes by the advice of

II.
All Images in Churches shall be destroyed; and such Missals, &c. shall be delivered up to the Mayors, &c. and by them to the Bishops, to be burned or destroyed.

Pooshy on not delivering up such Bookes; 1st Offence, 20s. 2d Offence, 40s. 3d. Imprisonment.

III.
Pooshy on Mayors, &c. and on Bishops, &c. neglecting to deliver such Bookes, &c.

IV.
Offences may be determined by Justices of Amise and Peace.

V.
Priores of H.VIII. may be used, invocations to Saints being blotted out.

VI.
Proviso for Images on Monuments.

For administering Ecclesiastical Lawes under the King^e Authority;

The King may appoint 16 of the Clergy and 16 of the Laity to pass and compile Ecclesiastical Lawes for Three Years.

¹ The Two following Provisions are annexed to the Original Act in Two separate Schedules.
² From the Original A.D. See Note at beginning of this Year.